WHITFIELD CARTER LLP

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REPORT ON TITLE

Project Ember — Acquisition of Ashby House, 40 Curzon Street, London W1J 7TL

To	The Directors, Marchwood Property Group Limited
From	Whitfield Carter LLP (Sarah Whitfield / James Osei)
Date	22 April 2026
Our reference	SW/JO/Ember/0136
Property	Ashby House, 40 Curzon Street, London W1J 7TL
Title number	NGL612904 (freehold, title absolute)
Seller	Westmoreland Property Holdings Limited (06642188)
Price	£24,750,000 (exclusive of VAT; TOGC intended)

1. Introduction and scope

This report sets out the results of our investigation of title and review of the principal due-diligence documents relating to the proposed acquisition of the freehold investment known as Ashby House, 40 Curzon Street, London W1J 7TL (the “Property”). It should be read with the tenancy schedule, the replies to CPSE.1 and supplemental enquiries, the search results, and the sale contract, each of which is referred to below. This report is addressed to you and is for the purpose of this acquisition only; it may not be relied on by any third party (including any funder) without our prior written consent. We have not inspected the Property and have not advised on its physical condition, value, or any environmental matters beyond those revealed by the searches.

2. The Property and title

The Property comprises a self-contained office building of basement, lower ground, ground and seven upper floors, with a net internal area of approximately 38,420 sq ft, together with a rear electricity sub-station enclosure. The freehold is registered at HM Land Registry under title number NGL612904 with title absolute. The registered proprietor is Westmoreland Property Holdings Limited, which acquired the Property by a transfer dated 11 May 2018. We have reviewed official copies of the register and title plan dated 8 April 2026 and are satisfied that the Seller is able to transfer the freehold with full title guarantee, subject to discharge of the registered charge referred to in paragraph 4 below.

3. Matters affecting the Property

The property register records the benefit of a deed of easement dated 14 June 1998 granting rights of support and rights to use and maintain the electricity sub-station serving the building and adjoining premises. The charges register records (a) restrictive covenants contained in a conveyance dated 2 March 1953 (relating to use and building lines, now largely spent given the established office use and the planning history), and (b) the registered charge referred to below. None of the entries is, in our view, such as to prevent the use of the Property as a multi-let office investment or to materially affect value. The covenants in the 1953 conveyance are old and we are not aware of any person with the benefit of them having sought to enforce them; nevertheless we recommend that defective title / restrictive covenant indemnity insurance be considered as a low-cost precaution, and we have obtained an indicative quotation (premium £3,950 for £25m cover).

4. Existing charge

The charges register records a legal charge dated 11 May 2018 in favour of Clydesford Bank plc. The Seller has confirmed that this will be redeemed on or before completion. The sale contract (clause 5.3) obliges the Seller to procure discharge and, if a DS1 or electronic discharge is not available at completion, to give an undertaking in the agreed form. We will require either the discharge or a satisfactory solicitor’s undertaking at completion and

will not release the completion monies until this is in hand.

5. Occupational tenancies

The Property is sold subject to and with the benefit of seven occupational leases producing a gross passing rent of £1,608,750 per annum. The leases are summarised in the tenancy schedule and we have reviewed each lease, together with the relevant licences, rent deposit deeds and any deeds of variation. The key points are:

- The largest tenant, Aldous Capital LLP, occupies the ground & first, fourth & fifth, and lower-ground (storage/parking) under three leases totalling £904,400 per annum, all expiring 24 March 2034 with tenant break and rent review at 25 March 2029. Two rent deposits (totalling £196,000) are held in respect of part of its holding.
- Brindley Marketing Limited (third floor, £244,800 pa) holds the benefit of a rent deposit of £122,400. There is an unresolved service-charge query raised by this tenant regarding apportionment of lift-refurbishment costs in the year ended 24 March 2025 (see paragraph 7).
- Calderfield Recruitment Ltd (second floor, £178,750 pa) is in arrears of £14,300 as at 31 March 2026. The arrears are to be apportioned on completion and we have allowed for this in the completion statement.
- The remaining leases (Whitstable Advisory LLP — sixth floor; Norhampton Family Office Ltd — seventh/penthouse) are on institutionally acceptable terms with upward-only rent reviews and FRI obligations via the service charge.

All leases are excluded from sections 24–28 of the Landlord and Tenant Act 1954 save for the Norhampton lease, which has security of tenure. We are satisfied that the leases are on terms usual for a building of this type and provide a substantially full repairing and insuring income through the service charge, subject to the non-recoverable allowance assumed in the cost model.

6. Rent deposits

Rent deposits totalling £318,400 are held by the Seller. Their benefit and the monies will be transferred to the Buyer on completion under the agreed-form rent deposit deed, with notices to be served on the relevant tenants. The amount of each deposit is credited to the Buyer in the completion statement.

7. Disputes and notices

Save for the Brindley service-charge query and the Calderfield arrears referred to above, the Seller has confirmed (CPSE.1 reply 4.3) that there are no notices or disputes affecting the Property. The Brindley query is in correspondence only and no proceedings have been issued; the sum in issue (approximately £9,300) is not material to value, but we recommend a service-charge retention of £100,000 (agreed in the contract) pending the reconciliation for the year ending 24 March 2026.

8. Searches

We have received and reviewed the local authority search (LLC1 and CON29), drainage and water search, an environmental desktop report, a chancel-repair screen, and a Highways/Network Rail screen. The local search reveals the Property to be within the City of Westminster, in a conservation area and subject to an Article 4 direction restricting permitted-development office-to-residential conversion (which does not affect the current investment use). No adverse entries, road schemes, enforcement notices or contaminated-land determinations were revealed. The environmental report returned a “passed” risk rating with no further action recommended.

9. VAT, TOGC and SDLT

The Property has been opted to tax by the Seller with effect from 1 April 2015 and HMRC’s acknowledgement has been produced. The sale is intended to proceed as a transfer of a going concern. To preserve TOGC treatment the Buyer must, before completion, (i) be registered for VAT, (ii) opt to tax the Property and notify HMRC, and (iii) confirm that the option will not be disapplied. We have prepared the necessary option and notification and will deal with these before completion. Stamp Duty Land Tax on the price of £24,750,000 is £1,227,000 (non-residential rates), which is payable by the Buyer within 14 days of completion. A section 198

capital allowances election fixing the fixtures disposal value at £1 has been agreed.

10. Conclusion and recommendation

Subject to (a) discharge of the Clydesford Bank charge (or a satisfactory undertaking) at completion, (b) the Buyer putting in place the steps necessary to preserve TOGC treatment, (c) consideration of restrictive-covenant indemnity insurance, and (d) the agreed service-charge retention, we are satisfied that the Property has a good and marketable title and may properly be acquired at the agreed price. We are not aware of any title or due-diligence matter that should cause you not to proceed. We are ready to exchange on your instructions.

Whitfield Carter LLP

22 April 2026